

nurse under this Act, who is representative of the same interests as those represented by the vacating member.

Any person appointed or elected to fill a casual vacancy shall hold office only so long as the member in whose stead he is appointed or elected would have held office.

7. Any member ceasing to be a member of the Council shall be eligible for re-appointment or re-election.

8. The powers of the Council may be exercised notwithstanding any vacancy in their number.

CHAPTER 95.

An Act to provide for the Registration in Scotland of Nurses for the Sick. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Establishment
and constitu-
tion of General
Nursing
Council for
Scotland.

1.—(1) For the purposes of this Act, there shall be established a General Nursing Council for Scotland (in this Act referred to as "the Council"), which shall be a body corporate by that name with perpetual succession and a common seal, with power to acquire, hold and dispose of land. The Council may sue and be sued by that name, and service on the Council of all legal processes and notices may be effected by service on their registrar.

(2) The Council shall be constituted in accordance with the provisions contained in the Schedule to this Act.

(3) Any document purporting to be sealed with the seal of the Council or to be signed in the name of the Council by their registrar or any person authorised by the Council to act in that behalf shall be receivable in evidence of the particulars stated in that document.

Register of
nurses.

2.—(1) It shall be the duty of the Council to form and keep a register of nurses for the sick (in this Act referred to as "the register") subject to and in accordance with the provisions of this Act.

(2) The register shall consist of the following parts:—

(a) a general part containing the names of all nurses who satisfy the conditions of admission to that part of the register:

(b) a supplementary part containing the names of male nurses:

- (c) a supplementary part containing the names of nurses trained in the nursing and care of persons suffering from mental diseases :
- (d) a supplementary part containing the names of nurses trained in the nursing of sick children :
- (e) any other prescribed part.

Where any person satisfies the conditions of admission to any supplementary or prescribed part of the register, his name may be included in that part of the register notwithstanding that it is also included in the general part.

(3) A certificate under the seal of the Council stating that any person is, or was at any date, or is not, or was not at any date, duly registered under this Act shall be conclusive evidence in all courts of law of the fact stated in the certificate.

(4) Any reference in this Act to the register shall, unless the context otherwise requires, be deemed to include a reference to any part of the register, and the expression "registered" shall be construed accordingly.

3.—(1) The Council shall make rules for the following Rules.
purposes :—

- (a) for regulating the formation, maintenance and publication of the register ;
- (b) for regulating the issue of certificates and the conditions of admission to the register ;
- (c) for regulating the conduct of any examinations which may be prescribed as a condition of admission to the register, and any matters ancillary to or connected with any such examinations ;
- (d) for prescribing the causes for which, the conditions under which, and the manner in which nurses may be removed from the register, the cancellation of certificates of nurses removed from the register, the procedure for the restoration to the register of nurses who have been removed therefrom, and the fee to be payable on such restoration ;
- (e) for regulating the summoning of meetings of the Council and the proceedings (including quorum) of the Council ;
- (f) for enabling the Council to constitute committees and for authorising the delegation to committees of any of the powers of the Council, and for regulating the proceedings (including quorum) of committees ; and
- (g) generally for making provision with respect to any matters with respect to which the Council think that provision should be made for the purpose of carrying this Act into effect (including provision with respect to the uniform or badge which may be worn by nurses registered under this Act), and for prescribing anything which under this Act is to be prescribed.

(2) Rules under this section shall contain provisions—

- (a) requiring as a condition of the admission of any person to the register that such person shall have undergone the prescribed training, and shall possess the prescribed experience, in the nursing of the sick ; and
- (b) requiring that the prescribed training shall be carried out either in an institution approved by the Council in that behalf or in the service of the Admiralty, the Army Council, or the Air Council ; and
- (c) enabling persons who, within a period of two years after the date on which the rules to be made under the provisions of this paragraph first come into operation, make an application in that behalf (in this Act referred to as “an existing nurse’s application”), to be admitted to the register on producing evidence to the satisfaction of the Council that they are of good character, are of the prescribed age, and either—
 - (i) are persons holding certificates from the Local Government Board for Scotland or from the Scottish Board of Health (in this Act referred to as “the Board”) that they possess the qualifications required by the Department so certifying, or
 - (ii) are persons who were for at least three years before the first day of November, nineteen hundred and nineteen, bonâ fide engaged in practice as nurses in attendance on the sick under conditions which appear to the Council to be satisfactory for the purposes of this provision and have adequate knowledge and experience of the nursing of the sick.

(3) Before making rules under this section with respect to the conditions of admission to the register, the Council shall, with a view to securing a uniform standard of qualification in all parts of the United Kingdom, consult with any Nursing Councils which may be established by Parliament for England and Wales or Ireland respectively.

(4) Rules made under this section shall not come into operation unless and until they are approved by the Board.

(5) At least thirty days before making any rules under this section, notice of the proposal to make the rules, and of the place where copies of the draft rules may be obtained, shall be published by the Council in the *Edinburgh Gazette*, and in such other manner as the Council think best adapted for ensuring publicity.

(6) Every rule made under this section shall be laid before each House of Parliament forthwith, and, if an Address is

presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after any such rule is laid before it praying that the rule may be annulled or modified, His Majesty in Council may annul or modify the rule and, if annulled, it shall thenceforth be void, and, if modified, it shall thenceforth have effect as so modified, but without prejudice to the validity of anything previously done thereunder.

4.—(1) The Council may, with the previous sanction of the Board, appoint a person to act as registrar of the Council, and may, subject to the consent of the Board as to numbers, employ such other officers as the Council consider necessary. The registrar shall act as secretary and treasurer to the Council, and shall be charged, subject to the instructions of the Council, with the preparation, correction, and custody of the register. Staff and expenses.

(2) There shall be paid to the registrar and the other officers of the Council such salaries or remuneration as the Council with the approval of the Board may from time to time determine.

(3) Any expenses incurred by the Council in carrying this Act into effect, including expenses in connection with examinations under this Act and, subject as hereinafter provided, the travelling expenses of and sums paid on account of subsistence allowance to members of the Council, shall be defrayed out of the sums received by the Council by way of fees under this Act, or any other sums received by the Council:

Provided that the amount to be allowed to members of the Council in respect of travelling expenses and subsistence allowance shall be calculated in accordance with directions to be given by the Board.

(4) The accounts of the Council shall be made up annually as at such date as the Board may fix, and shall be audited in such manner, and by such person, as the Board may from time to time direct, and copies of the accounts, and of any report made on the accounts, shall, within three months after the date as at which the accounts are made up, be transmitted by the Council to the Board and to such persons as the Board may direct.

5.—(1) There shall be paid to the Council in respect of every application to be examined or to be registered under this Act, and in respect of the retention in any year of the name of any person on the register, such fees respectively as the Council may, with the approval of the Board, from time to time determine: Fees.

Provided that—

(a) in the case of an existing nurse's application the amount of the fee payable on the application shall be such sum, not exceeding one guinea, as the

Council, with such approval as aforesaid, may determine; and

- (b) the amount of the fee payable in respect of the retention in any year of the name of any person on the register shall not exceed two shillings and sixpence.

(2) The Council may charge for any certificate or other document issued, or in respect of any services performed, by them, such fees as may be prescribed.

Admission to register of persons trained outside United Kingdom.

6.—(1) Any person who proves to the satisfaction of the Council that he has been registered, either generally as a nurse for the sick, or as a nurse of some special class, in any part of His Majesty's dominions outside the United Kingdom, being a part of those dominions to which this section applies, shall be entitled, on making an application in the prescribed manner and paying such fee, not being greater than the fee payable on ordinary applications for registration under this Act, as the Council may demand, to be registered in a corresponding manner under this Act.

(2) This section applies to any part of His Majesty's dominions as respects which the Council are satisfied—

- (a) that there is in force therein an enactment, or a provision of any kind having the force of law, providing for the registration of nurses under some public authority;
- (b) that persons registered under this Act are admitted to the register established under the said enactment or provision on terms not less favourable than those contained in subsection (1) of this section; and
- (c) that the standard of training and examination required for admission to the register of nurses established under the said enactment or provision is not lower than the standard of training and examination required under this Act.

(3) In the event of provision being made for the establishment of a register of nurses in England and Wales or Ireland, the Council shall make rules under this Act enabling persons registered as nurses in England and Wales or Ireland, as the case may be, to obtain admission to the register of nurses established under this Act.

Appeal against removal from register, and against refusal to approve institution.

7.—(1) Any person aggrieved by the removal of his name from the register may, within three months after the date on which notice is given to him by the Council that his name has been so removed, appeal against the removal in manner provided by Act of Sederunt to the Court of Session, and on any such appeal the Court may give such directions in the matter as it thinks proper, including directions as to the costs of the

appeal, and the order of the Court shall be final and conclusive and not subject to an appeal to any other court.

(2) Any person aggrieved by the refusal of the Council to approve any institution for the purpose of the rules under this Act relating to training may appeal against the refusal to the Board, and the Board, after considering the matter, shall give such directions therein as they think proper, and the Council shall comply with any directions so given.

8.—(1) Any person who—

- (a) not being a person duly registered under this Act, at any time after the expiration of three months from the date on which the Board gives public notice that a register of nurses has been compiled under this Act, takes or uses the name or title of registered nurse, either alone or in combination with any other words or letters, or any name, title, addition, description, uniform, or badge, implying that he is registered under this Act or is recognised by law as a registered nurse ; or
- (b) being a person whose name is included in any part of the register, at any time after the expiration of the period aforesaid, takes or uses any name, title, addition, description, uniform, or badge, or otherwise does any act of any kind, implying that his name is included in some other part of the register ; or
- (c) at any time with intent to deceive makes use of any certificate of registration as a nurse issued under this Act to him or any other person ;

Penalties for unlawful assumption of title of registered nurse and for falsification of register.

shall be liable on summary conviction to a penalty not exceeding, in the case of a first offence, ten pounds, and in the case of a second or any subsequent offence fifty pounds.

(2) If any person wilfully makes, or causes to be made, any falsification in any matter relating to the register, he shall be guilty of a crime and offence and shall, on conviction thereof, be liable to a fine not exceeding one hundred pounds.

9. The Council shall present to the Board a report of their proceedings during each year within three months after the termination of each year, containing such particulars as the Board may direct.

Annual report of Council.

10.—(1) This Act shall extend to Scotland only.

Extent and short title.

(2) This Act may be cited as the Nurses Registration (Scotland) Act, 1919.

SCHEDULE.

CONSTITUTION OF COUNCIL.

Section 1.

1. The Council shall consist of fifteen members.

2. On its first constitution the Council shall be composed of the following persons, namely :—

One person, who shall not be a registered medical practitioner, or a nurse, or a person concerned with the regular direction or provision of the services of nurses, appointed by the Privy Council :

One person appointed by the Scottish Education Department :

Four persons appointed by the Board, after consultation with persons and bodies having special knowledge and experience of training schools for nurses, of the work of matrons of hospitals, of general and special nursing services, and of general and special medical practice :

Nine persons, who are or have at some time been nurses actually engaged in rendering services in direct connection with the nursing of the sick, appointed by the Board after consultation with such associations or organised bodies of nurses or matrons as appear to the Board to represent persons who may become registered under this Act. The Board in making appointments under this provision shall have regard to the desirability of including in the Council persons having experience in the various forms of nursing.

3. The first members of the Council shall hold office for such term, not less than two years and not exceeding three years from the commencement of this Act, as the Board may determine.

4. After the expiration of the term of office of the first members of the Council, the Council shall be composed of six persons appointed respectively by the Privy Council, the Scottish Education Department, and the Board as aforesaid, and of nine persons, being persons registered as nurses under this Act, elected in the prescribed manner by the persons so registered at the date of election.

5. Any members of the Council other than the first members thereof shall hold office for a term of five years.

6. If the place of a member of the Council becomes vacant before the expiration of his term of office whether by death, resignation, or otherwise, the vacancy shall be filled, if the vacating member was an appointed member, by appointment by the body or persons by whom the member was appointed, or if the vacating member was an elected member in such manner as may be prescribed.

Any person appointed or elected to fill a casual vacancy shall hold office only so long as the member in whose stead he is appointed or elected would have held office.

7. Any member ceasing to be a member of the Council shall be eligible for re-appointment or re-election.

8. The powers of the Council may be exercised notwithstanding any vacancy in their number.
